

22STCV03287 22STCV03287

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C07%2F21%2F2026

Source SHA-256: 2541a0311fbb723240cdcaa11b51dc1d0e6cf2e23b750cdea717b29d93588ef7

Case Number: 22STCV03287 Hearing Date: July 21, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

21, 2026

CASE NUMBER

22STCV03287

MOTION

Motion

to Strike/Tax Costs

MOVING PARTY

Plaintiff

Kathryn Lewis

OPPOSING PARTIES

Defendants

USA Triathlon of Colorado and USA Triathlon

MOTION

This case arises from allegations of a motor vehicle collision with a bicyclist on Pacific Coast Highway ("PCH") during the Malibu Triathlon in 2021. Approximately 2,000 feet southeast of the intersection of PCH and Guernsey Drive, Defendant Zoe Dimmel-Alexeff made an illegal U-turn, colliding with Plaintiff, who was riding in a separated bike lane.

On January 27, 2022, Plaintiff filed the instant lawsuit alleging five causes of action for (1) general negligence; (2) automobile negligence; (3) negligent act or omission of public entity or employee; (4) premises liability; and (5) dangerous condition on public property.

The Second Cause of Action is alleged only against Defendants Zoe Dimmel-Alexeff and Alexander Alexeff.

On March 17, 2026, the Court granted Defendants USA Triathlon of Colorado and USA Triathlon's motion for summary judgment, but denied the motion as to Defendants Malibu Triathlon Productions, LLC; Brennan Lindner; and Generic Events. Judgment was entered as to the two USA Triathlon Defendants on June 4, 2026.

On June 18, 2026, the USA Triathlon Defendants filed a Memorandum of Costs, outlining \$5,821.71 in costs.

Plaintiff now moves to strike or tax the memorandum of costs. Defendants oppose the motion and Plaintiff replies.

LEGAL

STANDARDS

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Prevailing party" includes, among other things, "a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4).)

Code of Civil Procedure section 1033.5, subdivision (a) sets forth items that are allowable as costs. Allowable costs under Section 1033.5 must be “reasonably necessary to the conduct of this litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).) “Items not mentioned in [Section 1033.5] and items assessed upon application may be allowed or denied in the court’s discretion.” (Id. at subd. (c)(4).)

On a motion to tax, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774, internal citations omitted.)

“The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seeever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

ANALYSIS

The USA Triathlon Defendants request costs in the amount of \$5,821.71, composed of the following:

.

Filing and motion fees: \$1,870

.

Jury fees: \$60

.

Deposition costs: \$3,671.71

.

Witness fees: \$220

Plaintiff does not challenge the \$870 in fees incurred by the USA Triathlon Defendants to file their answers, but challenges the remainder of the costs sought, which Plaintiff contends Defendants' counsel largely calculated by simply attributing 2/5 of their overall litigation costs to the USA Triathlon Defendants, since they represent 2 of 5 Defendants.

Of the \$1,870 filing and motion fees, Plaintiff challenges the remaining \$1,000 in fees incurred filing the Motion for Summary Judgment. Plaintiff also challenges the \$60 pro rata share of jury fees, the \$3,671.71 deposition costs, and the \$220 in witness fees. Plaintiff argues those fees pertain to the case as a whole, and not to the USA Triathlon Defendants specifically.

In support, Plaintiff cites to *Charton v. Harkey* (2016) 247 Cal.App.4th 730, 744-745. There, the Court of Appeal held that it was error for the trial court to simply award the prevailing defendants their pro rata share of all costs incurred by the defense, including costs incurred exclusively by other defendants, without analyzing whether the costs were reasonably and necessarily incurred by the prevailing defendants.

But here, Plaintiff does not challenge the reasonableness or necessity of the instant costs. Jury fees were necessarily incurred to preserve the USA Triathlon Defendants' right to a jury trial, as demanded in their answers.

Similarly, Plaintiff concedes the deposition costs were incurred deposing Plaintiff, "other Defendants, law enforcement witnesses, CalTrans, Total Barricade, and other third-party witnesses that all concern the underlying incident, Plaintiff's injuries and damages, roadway issues, barricades, event operations, law enforcement response, and the conduct of other Defendants." Thus, these costs were all relevant to the USA Triathlon Defendants' defenses to the litigation.

The same goes for the witness fees for Detective Scott Shean and Deputy Paul Ferreira, both "law enforcement witnesses connected to the incident generally." As such, those fees were necessarily relevant to the USA Triathlon Defendants.

Further, the USA Triathlon Defendants' pro rata share of their successful motion for summary judgment was reasonably and necessarily incurred in their defense of this litigation.

Plaintiff's arguments seem to invert the holding of Chalon, which is to ensure that the prevailing defendants actually reasonably incurred a pro rata share of the underlying expenses at issue, not that a prevailing defendant can never recoup their pro rata share of an expense, merely because it also applied to other Defendants.

In other words, Chalon dictates that a prevailing defendant cannot recoup their pro rata share of an underlying expense that was incurred solely by other defendants. It did not hold that an expense must have been incurred solely by the prevailing defendants. Generally, defendants are entitled to their pro rata share of expenses they jointly and reasonably incurred.

Thus, because the costs pertain to the case as a whole, it is appropriate for the USA Triathlon Defendants to recoup their pro rata share of these costs that were incurred before summary judgment was entered in their favor.

CONCLUSION

The Court denies Plaintiff's motion to tax costs and awards Defendants USA Triathlon of Colorado and USA Triathlon their reasonably incurred costs in the requested amount of \$5,821.71.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 21, 2026 ____/s/ _____

Michael

E. Whitaker

Judge
of the Superior Court